

**SUBSTITUTE FOR
HOUSE BILL NO. 5938**

A bill to amend 1994 PA 451, entitled
"Natural resources and environmental protection act,"
by amending section 30307 (MCL 324.30307), as amended by 2018 PA
631.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 30307. (1) ~~Within 60~~ **Not later than 30** days after receipt
2 of the completed application and fee, the department may hold a
3 hearing. If a hearing is held, ~~it shall~~ **the hearing must** be held in
4 the county where the wetland to which the permit is to apply is
5 located. Notice of the hearing ~~shall~~ **must** be given in the same
6 manner as for the promulgation of rules under the administrative
7 procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328. The
8 department may approve or disapprove a permit application without a



1 public hearing unless a person requests a hearing in writing ~~within~~
 2 **not later than** 20 days after the mailing of notification of the
 3 permit application as required by subsection (3) or unless the
 4 department determines that the permit application is of significant
 5 impact ~~so as to~~ warrant a public hearing.

6 (2) The action taken by the department on a permit application
 7 under this part or part 13 may be appealed ~~pursuant to in~~
 8 **accordance with** the administrative procedures act of 1969, 1969 PA
 9 306, MCL 24.201 to 24.328. A property owner may, after exhaustion
 10 of administrative remedies, bring appropriate legal action in a
 11 court. ~~of competent jurisdiction.~~

12 (3) The department shall post on ~~its~~ **the department's** website,
 13 and ~~shall have~~ a process to provide ~~electronic mail~~ **email**
 14 notification of, all of the following under this part:

15 (a) A list of pending applications.

16 (b) Public notices.

17 (c) Public hearing schedules.

18 (4) A local unit of government may regulate wetland within ~~its~~
 19 **the local unit of government's** boundaries, by ordinance, only as
 20 provided under this part. This subsection is supplemental to the
 21 existing authority of a local unit of government. An ordinance
 22 adopted by a local unit of government ~~pursuant to~~ **under** this
 23 subsection ~~shall~~ **must** comply with all of the following:

24 (a) The ordinance ~~shall~~ **must** not provide a different
 25 definition of wetland than is provided in this part, except that a
 26 wetland ordinance may regulate wetland of less than 5 acres in
 27 size.

28 (b) If the ordinance regulates wetland that is smaller than 2
 29 acres in size, the ordinance ~~shall~~ **must** comply with section 30309.



(c) The ordinance ~~shall~~**must** comply with sections 30308 and 30310.

(d) The ordinance ~~shall~~**must** not require a permit for uses that are authorized without a permit under section 30305, and ~~shall~~**must** otherwise comply with this part.

(5) A local unit of government that adopts an ordinance regulating ~~wetlands~~**wetland** under subsection (4) shall notify the department.

(6) A local unit of government that adopts an ordinance regulating ~~wetlands~~**wetland** shall use an application form supplied by the department, and each person applying for a permit shall make application directly to the local unit of government. ~~Upon~~**On** receipt, the local unit of government shall forward a copy of each application along with any state fees that may have been submitted under section 30306 to the department. The department shall begin reviewing the application as provided in this part. The local unit of government shall review the application ~~pursuant to its~~**in accordance with the** ordinance and ~~shall~~ modify, approve, or deny the application ~~within~~**not later than** 90 days after receipt. If a local unit of government does not approve or disapprove the permit application within the time period provided by this subsection, the permit application ~~shall be~~**is** considered approved, and the local unit of government ~~shall be~~**is** considered to have made the determinations as listed in section 30311. The denial of a permit ~~shall~~**must** be accompanied by a written statement of all reasons for denial. The failure to supply complete information with a permit application may be reason for denial of a permit. If requested, the department shall inform a person whether or not a local unit of government has an ordinance regulating ~~wetlands~~**wetland**. If the



1 department receives an application with respect to a wetland
 2 located in a local unit of government that has an ordinance
 3 regulating ~~wetlands, wetland~~, the department immediately shall
 4 forward the application to the local unit of government, which
 5 shall modify, deny, or approve the application under this
 6 subsection. The local unit of government shall notify the
 7 department of its decision. The department shall proceed as
 8 provided in this part.

9 (7) If a local unit of government does not have an ordinance
 10 regulating ~~wetlands, wetland~~, the department shall promptly send a
 11 copy of the permit application to the local unit of government
 12 where the wetland is located. The local unit of government may
 13 ~~review~~ **do any of the following:**

14 (a) **Review** the application. ~~; may hold~~

15 (b) **Hold** a hearing on the application. ~~; may recommend~~

16 (c) **Recommend** approval, modification, or denial of the
 17 application to the department. ~~or may notify~~

18 (d) **Notify** the department that the local unit of government
 19 declines to make a recommendation. The recommendation of the local
 20 unit of government, if any, ~~shall~~ **must** be made and returned to the
 21 department ~~within~~ **not later than** 45 days after the local unit of
 22 government's receipt of the permit application.

23 (8) In addition to the requirements of subsection (7), the
 24 department shall notify the local unit of government that the
 25 department has ~~issued~~ **granted** a permit under this part pertaining
 26 to wetland located within the jurisdiction of that local unit of
 27 government ~~within~~ **not later than** 15 days ~~of~~ **after the** issuance of
 28 the permit. The department shall enclose a copy of the permit with
 29 the notice.



1 (9) After a permit is granted under this section, the permit
2 holder may request to make changes to the permit and shall submit a
3 request to make changes on a form and in a manner prescribed by the
4 department. The department may authorize additional changes, other
5 than those changes requested by the permit holder, if the following
6 conditions are met:

7 (a) The department's additional changes do not provide for any
8 new or additional requirements that are unrelated to the changes
9 that the permit holder requested under this subsection.

10 (b) The department must not readdress any portion of the
11 permit that was previously examined or approved.

12 (c) The department must notify the permit holder of the
13 department's additional changes not later than 7 days after receipt
14 of the permit holder's request for changes. The department shall
15 not authorize any additional changes to a permit after the
16 expiration of the 7-day time period.

17 (10) A permit holder that requests to make changes to a permit
18 under subsection (9) does not restart the application process under
19 this part or part 13 for granting a permit.

20 Enacting section 1. This amendatory act does not take effect
21 unless all of the following bills of the 103rd Legislature are
22 enacted into law:

23 (a) House Bill No. 5936.

24 (b) House Bill No. 5937.

25 (c) House Bill No. 6038.

